

HOUSE No. 5552

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 30, 2026.

The committee on Ways and Means to whom was referred the Bill releasing certain land use restrictions held by the commonwealth in the city of Revere (House, No. 5190), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5552).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act releasing certain land use restrictions held by the commonwealth in the city of Revere.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the
2 commissioner of the division of capital asset management and maintenance shall, subject to the
3 consideration requirement in section 2, release the: (i) use restriction provision restricting the use
4 of the parcel to parking purposes only; (ii) use restriction provision restricting the owner of the
5 land from using the parcel to enhance the permitted floor area ratio of any of the land owner's
6 adjacent property; and (iii) right of reverter created pursuant to chapter 443 of the acts of 2004
7 and reserved through the release deed dated December 8, 2006 to Joseph A. Festa and John V.
8 Festa, as trustees of the Festa Towers Irrevocable Trust and recorded with the Suffolk county
9 registry of deeds in book 40922, page 303, pertaining to Lot "6A" in the city of Revere as shown
10 on a plan entitled, "Plan of Land in the City of Revere, Suffolk County Owned by the
11 Commonwealth of Massachusetts Prepared for the Division of Capital Asset Management &
12 Maintenance" and recorded with the Suffolk county registry of deeds in plan book 2006, page
13 1135.

14 SECTION 2. The consideration to be paid to the commonwealth for the conveyance
15 authorized in section 1 shall be the full and fair market value of the restrictions based upon an
16 independent professional appraisal as determined by the commissioner of capital asset
17 management and maintenance. The commissioner shall submit the appraisal to the inspector
18 general for review and comment. The inspector general shall review and approve the appraisal,
19 and the review shall include an examination of the methodology utilized for the appraisal. The
20 inspector general shall prepare a report and shall file the report with the commissioner. After
21 receiving the report, the commissioner shall submit copies of the report to the house and senate
22 committees on ways and means and the chairs of the joint committee on state administration and
23 regulatory oversight. The commissioner shall, 90 days before the execution of any agreement
24 authorized by this act, or any subsequent amendment thereof, submit the agreement or
25 amendment and a report thereon to the inspector general for review and comment. The inspector
26 general shall issue their review and comment upon receipt of any agreement or amendment. The
27 commissioner shall submit the agreement and any subsequent amendments thereof, the reports
28 and the comments of the inspector general, if any, to the house and senate committees on ways
29 and means and the chairs of the joint committee on state administration and regulatory oversight
30 at least 15 business days before execution.

31 SECTION 3. The owner of the land released shall assume all costs associated with
32 engineering, surveys, appraisals, deed preparation and other expenses deemed necessary by the
33 division of capital asset management and maintenance to execute the conveyances authorized in
34 this act.

35 SECTION 4. As a condition of the release described in section 1, not less than 10 per
36 cent of all housing units developed on the parcels described in section 1 shall be affordable

- 37 housing, to be priced for rent or sale to households earning up to 80 per cent of the area wide
- 38 median income as determined by the United States Department of Housing and Urban
- 39 Development and assure affordability for 20 years.